**Background:**

The Patient and Protection and Affordable Care Act of 2010 required implementation of Hospital Presumptive Eligibility (HPE) effective January 1, 2014. Qualified hospitals can determine HPE for certain Medi-Cal eligible individuals based on preliminary information. HPE provides temporary, no share-of-cost, PE Medi-Cal benefits based on self-attested information collected by authorized hospital personnel from the individual.

**Policy:**

**Eligibility Requirements:**

To qualify for the HPE program, individuals must be a California resident, not be currently enrolled in Medi-Cal, and meet the income and household composition requirements for one of the ACA eligibility groups.

The ACA eligibility groups are:

- Former foster care children between the ages of 18 and 26 who received Foster Care on their 18th birthday
- Children, ages 0 to18
- Parent/ caretaker relatives
- Pregnant women
- New Adults (ages 19 to 64, not pregnant at time of application, not enrolled in Medicare, and not eligible for any other mandatory group)

**HPE Application:**

The HPE application is a one-page application that is based on the individual's attestation about their state residence, income and family size.

HPE eligibility determination is made in real-time. Authorized hospital personnel review the application and input the individual's information online via the HPE online portal. Once the application is submitted online, an electronic match verifies that the individual is not currently receiving Medi-Cal benefits using the MEDS system. MEDS will provide a response and makes an HPE eligibility determination. HPE paper applications are not acceptable and must be submitted online only.

If the individual is eligible for HPE, the authorized hospital personnel will provide an "Immediate Need Eligibility Document". HPE beneficiaries will not receive a Benefits Identification Card (BIC); therefore, the "Immediate Need Eligibility Document" can be used as a BIC.

**HPE Denials**

A HPE application can be denied if applicant attests to any of the following:

- Not being a California resident
- Having income over the limit for their coverage group
- Being currently enrolled in Medi-Cal
- Already having received HPE benefits based on limitations set by DHCS

**HPE Enrollment Period and Limitations**

The HPE period begins on the day the applicant is determined eligible for PE and ends on the last day of the following month, if a Medi-Cal application is not submitted for ongoing eligibility. If a Medi-Cal application is submitted prior to the last day of the PE period, PE will continue until a final determination is completed. HPE providers are required to provide HPE enrolled individuals an insurance affordability application (also known as a Medi-Cal application) prior to leaving the hospital.

MEDS is programmed to automatically terminate HPE beneficiaries who reach their PE period unless MEDS has a record of a pending application.

| If MEDS shows a… | Then MEDS will… |
|---|---|
| pending application with HX18 transaction (Covered California application) or EW18 transaction (county application) | not automatically terminate. |
| transaction with either HX20 or EW20 | automatically terminate. |

HPE enrollment period limitations are as follows:

| Coverage Group | PE Enrollment Period Permitted |
|---|---|
| Former foster youth, age 18 to 25 | One every 12 months |
| Children, age 0 to 18 | Two every 12 months |
| Parents and caretaker relatives | One every 12 months |
| New Adult Group- age 19 through 64, not pregnant, not enrolled in Medicare, and not eligible for any other group | One every 12 months |
| Pregnant Women | One per pregnancy |

Note: If an applicant is not eligible for PE due to exceeding the related enrollment limitation, a full Medi-Cal application shall be processed, including an evaluation of the need for a retroactive application.

**Aid Codes**

The following HPE aid codes are used by hospitals to issue HPE benefits to eligible individuals based on description and FPL:

| Aid Code | Description | FPL | Level of Benefits |
|---|---|---|---|
| P1 | Infants, up to age 1 | At or below 208% | Full |
| P2 | Parent/Caretaker relative | At or below 109% | Full |
| P3 | Adults | At or below 138% | Full |
| P4 | Pregnant women | At or below 213% | Limited to ambulatory prenatal services |
| H6 | Infants age 0 to 1 | 209 – 266% | Full |
| H7 | Children age 1 to 5 | At or below 142% | Full |
| H8 | Children age 6 to18 | At or below 133% | Full |
| H9 | Children age 1 to 5 | 143 – 266% | Full |
| H0 | Children age 6 to 18 | 134 – 266% | Full |

| | | | |
|---|---|---|---|
| 4E | Former foster care youth age 18 through 25 | No income screening | Full |

**Procedure:**
Medi-Cal applications submitted from HPE beneficiaries must be processed in accordance with our business application processing procedures making sure HPE aid codes are updated on MEDS upon case disposition.

**Other Program Impacts:**
None

**References:**
ACWDL 14-14
MEDIL I 15-26
MEDIL I 15-31

**Sunset Date:**
This policy will be reviewed for continuance on or by 04/30/2019.

**Release Date:**
04/11/2016